

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice S M Kuddus Zaman

CIVIL REVISION NO.4268 of 2012

Md. Abdus Samad

.... Petitioner

-Versus-

Late Baslam Uddin Sonar being dead his
heirs-Mosammat Safura Bewa and others

.... opposite parties

None appears

.... For both the sides.

Heard and judgment on 25.01.2024.

This Rule was issued calling upon the opposite part Nos.1-2 to show cause as to why the impugned judgment and order dated 23.09.2012 passed by the learned Joint District Judge, 2nd Court, Naogaon in Pre-emption Miscellaneous Appeal No.127 of 2010 dismissing the appeal and affirming the judgment and order dated 14.09.2010 passed by the learned Senior Assistant Judge, Sapahar, Naogaon in pre-emption Miscellaneous Case No.33 of 2006.

Facts in short are that the petitioner is a co-sharer by inheritance of the disputed khatian and opposite party Nos.1-2 are strangers of the same. Opposite party No.3 transferred $1\frac{1}{2}$ decimals land to opposite party Nos.1-2 on 10.07.2000 without serving any notice upon the petitioner. On 02.05.2006 when the petitioner wanted to catch fish then net then opposite party Nos.1-2 protested and disclosed the impugned kabala deed.

Opposite party Nos.1 and 2 contested the case by filing joint written objection alleging that the disputed land is a part of a pond and after purchasing the same by the impugned kabala deed dated

10.07.2000 they are possessing above pond and this case is hopelessly barred by limitation.

At trial the petitioner and opposite parties both examined two witnesses each. Documents filed by the petitioner were marked as Exhibit No.1-2.

On consideration of facts and circumstances of the case and the materials on record the learned Assistant Judge rejected the petition.

Being aggrieved by above judgment and order of learned Assistant Judge the petitioner preferred Miscellaneous Appeal No.127 of 2005 to the District Judge, Naogaon which was heard by the learned Joint District Judge, 2nd Court, Naogaon who dismissed above appeal and affirmed the judgment and order of the Trial Court by the impugned judgment and order dated 23.09.2012.

Being aggrieved by above judgment and order of the learned Joint District Judge, 2nd Court, Naogaon the appellant as petitioner moved to this Court under Section 115(1) of the Code of Criminal Procedure and obtained this Rule.

No one appears for the petitioner or the opposite party when the matter was taken up for hearing although the matter appeared in the list for hearing today.

Undisputedly, opposite party No.3 transferred $1\frac{1}{2}$ decimals land to opposite party Nos.1 and 2 by registered kabala dated on 10.07.2000 and this case under Section 96 of the State Acquisition and Tenancy Act for pre-emption of above land was filed on 20.07.2006 after about six years.

As such the case appears to be barred by limitation by more than five years.

In this regard the petitioner claimed that the opposite party Nos.1 and 2 did not come to the possession of above land nor he was

served with any notice of above transfer and on 02.05.2006 for the first time he came to know about above transfer when he went to fishing in the above pond.

In the plaint petition no mention was made as to the time of above occurrence of protest and disclosure by the opposite party or the names of the persons who witnessed above occurrence.

Petitioner himself did not come to the Court to give evidence in support of above claim. On behalf of the petitioner his son Yeasin gave evidence as PW1. But there is no mention in the plaint or petition that above Yeasin was present in the occurrence place or he had any personal knowledge about the above occurrence. In the petition it was stated that the petitioner wanted to catch fish when above occurrence of protest and disclosure occurred but PW2 Abdul Malek stated that hearing of a quarrel he went to above pond and found that opposite party wanted to catch fish in the pond.

On consideration of above evidence adduced by the petitioner in support of his date of knowledge as to the impugned kabala deed the learned Judges of the Court below concurrently found that the petitioner could not prove above date of knowledge by legal evidence.

Above concurrent findings of the Court below are based on legal evidence on record and in the absence of any claim of non consideration or misreading of any material evidence this Court in its revisional jurisdiction cannot interfere with above concurrent findings.

In above view of the materials on record I am unable to find any substance in this petition under Section 115(1) of the Code of Criminal Procedure and the Rule issued in this connection is liable to be discharged.

In the result, the Rule is hereby discharged. The impugned judgment and order dated 23.09.2012 passed by the learned Joint

District Judge, 2nd Court, Naogaon in Pre-emption Miscellaneous Appeal No.127 of 2010 is hereby affirmed.

However, there is no order as to costs.

Send down the lower Court's records immediately.

MD. MASUDUR RAHMAN
BENCH OFFICER